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[TENTATIVE] ORDER RE: PLAINTIFF'S

NOTICE OF MOTION AND PITCHESS MOTION FOR DISCOVERY OF PEACE OFFICER PERSONNEL
AND OTHER RECORDS OF VARIOUS LOS ANGELES POLICE DEPARTMENT OFFICERS

Background Facts

Plaintiff Jilvee Abalos

("Plaintiff") sues Defendant City of Los Angeles ("Defendant") and Does 1 through 100 pursuant to a December 13, 2024, Complaint alleging a single claim of Labor Code whistleblower retaliation.

Plaintiff's claim arises from allegations that Plaintiff was unlawfully terminated from his employment as Detective II with the Los Angeles Police Department ("LAPD") after he reported unlawful conduct by a Detective III supervisor, Julian Paris, who was simultaneously clocking in overtime hours with the Los Angeles County Metropolitan Transit Authority ("MTA") while actually working and clocking hours at LAPD offices where Plaintiff was working.

Now before the Court is Plaintiff's opposed Pitchess motion seeking an order disclosing certain LAPD records to Plaintiff.

Pitchess Motion

a.

Legal Standard

“The Pitchess statutory scheme recognizes that evidence contained in a law enforcement officer’s personnel file may be relevant in a lawsuit, but that the officer ‘has a strong privacy interest in his or her personnel records and that such records should not be disclosed unnecessarily.’ [Citation.] To balance these competing interests, the Legislature ‘require[d] the intervention of a neutral trial judge, who examines the personnel records in camera ... and orders disclosed to the defendant only those records that are found both relevant and otherwise in compliance with statutory limitations. In this manner, the Legislature has attempted to protect [a party’s] right to a fair trial and the officer’s interest in privacy to the fullest extent possible.” [Citations.] These statutes apply equally to civil and criminal discovery. [Citation.]” (Haggerty v. Superior Court (2004) 117 Cal.App.4th 1079, 1085.)

“Under the statutory scheme, a party seeking discovery of a peace officer’s personnel records must follow a two-step process. [Citation.]” (Id. at p. 1086; see Riske v. Superior Court (2016) 6 Cal.App.5th 647, 656 [“This two-step process for discovery of peace officer personnel records balances the officer’s strong privacy interests in his or her own personnel records with the needs of civil litigants and criminal defendants to obtain information material to their claim or defense”].)

“First, the party must file a written motion describing the type of records sought, supported by ‘[a]ffidavits showing good cause for the discovery ..., [i.e., the affidavits must] set[] forth the materiality [of the discovery] to the subject matter involved in the pending litigation and stat[e] upon reasonable belief that the governmental agency identified has the records or information from the records.’ ([Evid. Code] § 1043, subd. (b)(3).)” (Haggerty, supra, 117 Cal.App.4th at pp. 1085-86.; Riske, supra, 6 Cal.App.5th at p. 655 [“Good cause for discovery of peace officer personnel records under the statutory scheme exists when the party ... shows materiality ... and states upon ‘reasonable’ belief that the agency has the type of information sought”].)

“This initial burden is a ‘relatively relaxed standard.’ [Citation.]” (Haggerty, supra, 117 Cal.App.4th at p. 1086.)

“Information is material if it
“will facilitate the ascertainment of the facts and a fair trial.”

[Citation.]" [Citations.]" (Ibid.; Riske, supra, 6 Cal.App.5th at p. 658 ["The critical limitation for purposes of the initial threshold determination is materiality, which, in this context, means the evidence sought is admissible or may lead to discovery of admissible evidence"].) "[A] declaration by counsel on information and belief is sufficient to state facts to satisfy the 'materiality' component" [Citation.]" (Haggerty, supra, 117 Cal.App.4th at p. 1086; Abatti v. Superior Court (2003) 112 Cal.App.4th 39, 51 ["[B]ecause Evidence Code section 1043 contains no requirement of 'personal knowledge' on the part of the declarant or affiant, a declaration by counsel on information and belief is sufficient to state facts to satisfy the 'materiality' component of that section" (citing City of Santa Cruz v. Municipal Court (1989) 49 Cal.3d 74, 86-89)].)

"The information sought must, however, be 'requested with adequate specificity to preclude the possibility that [the discovering party] is engaging in a "fishing expedition."' (City of Santa Cruz, supra, 49 Cal.3d. at p. 85 [citing to Pitchess v. Superior Court (1974) 11 Cal.3d 531, 538, superseded by statute as stated in Long Beach Police Officers Assn. v. City of Long Beach (2014) 59 Cal.4th 59, 67-68].)

"Second, if 'the trial court concludes the [the discovering party] has fulfilled these prerequisites and made a showing of good cause, the custodian of records should bring to court all documents "potentially relevant" to the [Pitchess] motion The trial court "shall examine the information in chambers" (Evid. Code, § 1045, subd. (b)), "out of the presence and hearing of all persons except the person authorized [to possess the records] and such other persons [the custodian of records] is willing to have present." ... Subject to statutory exceptions and limitations ..., the trial court should then disclose to the [discovering party] "such information [that] is relevant to the subject matter involved in the pending litigation." [Citations.]" [Citation.]" (Haggerty, supra, 117 Cal.App.4th at p. 1086.)

b.

Parties' Positions

As part of his Pitchess motion, Plaintiff seeks the following categories of documents, as reflected in his notice of motion:

1. The complete

witness interviews in audio format, transcript format, or both, and the chronological log for the LAPD Internal Affairs investigation file Complaint Form ("CF") No. 23-003167 [i.e., investigation into alleged inappropriate use of work vehicle by Plaintiff].

2. Any and all

LAPD Internal Affairs investigation files (including the complaint investigation report, complaint face sheet, complaint adjudication form, letter of transmittal, witness interviews in both audio and transcript form, addenda, and chronological log) for any investigations conducted into the allegations in Plaintiff's Complaint in this matter [re: Paris MTA and], including but not limited to CF No. 25-000755.

3(a). Any and all

LAPD documents reflecting the dates that Detective Julian Paris was assigned to Los Angeles Metropolitan Transit Authority ("MTA") overtime from March 1, 2023 to October 5, 2023, including but not limited to, MTA detail rosters, assignment sheets, deployment logs, sign-in sheets, Overtime Reports (Form 02.24.00), Deployment Planning System records, Daily Sign-In Sheets (Form 15.19.00), Daily Field Activities Reports (Form 15.52.00), and any other COAST System records.

3(b). For each

date on which Detective Julian Paris was assigned to work MTA overtime between March 1, 2023 to October 5, 2023, all documents reflecting Detective Paris's presence at the Office of Constitutional Policing and Policy ("OCP"), including but not limited to, the daily sign-in sheets, Facilities Management Division key card tap/swipe logs and Information Technology Bureau / Information Technology Division computer access records.

In support of production of these

documents, Plaintiff argues that the discovery he seeks to obtain is material to his plausible factual scenario of whistleblower retaliation arising from his reports of unlawful conduct by Detective III Julian Paris, and that the above categories of documents are relevant to showing different facets of a whistleblower case: Category 1 relating to the internal affairs investigation against Plaintiff that led to discipline against Plaintiff, hereto date partially produced; Category 2 relating to the internal affairs investigation of Plaintiff's reports regarding Detective Paris's unlawful conduct in reporting work hours; and Categories 3(a) and 3(b) relating to Detective

Paris's scheduling and work hours for the MTA and for the LAPD between March 1, 2023, and October 5, 2023.

In opposition, Defendant argues that: Category 1 has been sufficiently produced except as to witness interviews, making production of those interviews a waste of judicial resources, but if the Court is inclined to grant the motion as to the interviews, Plaintiff should be ordered to pay for the transcription of the audio recordings; Category 3 documents are not Pitchess materials; and third-party officers' information should not be subject to discovery as violative of the right to privacy. Defendant's papers do not address Category 2.

No reply appears in the record.

c. Discussion

c. Discussion

The Court concludes that Plaintiff has established good cause under Evidence Code section 1043 for an in camera review of certain, but not all, of the requested materials.

A party seeking discovery of peace officer personnel records bears a relatively low threshold burden to establish materiality and a reasonable belief that the governmental agency possesses the requested information. (*Haggerty v. Superior Court* (2004) 117 Cal.App.4th 1079, 1085-1086.) Plaintiff has met that burden with respect to Categories 1 and 2.

Category 1

Category 1 seeks materials contained in Internal Affairs Complaint Form No. 23-003167 concerning the investigation that ultimately resulted in discipline imposed upon Plaintiff. Plaintiff alleges that the investigation and resulting discipline were used as a pretext for retaliating against him after he reported misconduct by Detective III Julian Paris. The requested investigative materials are therefore directly relevant to Plaintiff's theory of retaliation and pretext and may reasonably lead to admissible evidence.

Defendant argues that most of these materials have already been produced and that compelling production of witness interviews would unnecessarily consume judicial resources. The Court is not persuaded. Once a moving party establishes good cause, the statutory Pitchess procedure requires the custodian of records to produce all potentially responsive personnel records for the Court's in camera review. It is the Court—not the governmental agency—that determines which materials, if any, are relevant and subject to disclosure under Evidence Code section 1045. Accordingly, Plaintiff has established good cause for an in camera review of any witness interviews and other responsive materials not previously produced.

Category 2

Category 2 seeks Internal Affairs investigation files concerning Plaintiff's complaints regarding Detective Paris' alleged misconduct. Plaintiff contends that LAPD inadequately investigated his complaints and that the manner in which those complaints were handled supports his claim of retaliatory motive and pretext.

The Court finds that Plaintiff has demonstrated the requisite materiality. The manner in which Defendant investigated Plaintiff's complaints, the evidence gathered during those investigations, and the resulting findings may bear directly upon Plaintiff's whistleblower retaliation claim. Defendant does not substantively oppose production of these materials, and the Court concludes that Plaintiff has established good cause for an in camera review of any potentially responsive personnel records.

Category 3

Categories 3(a) and 3(b) seek records reflecting Detective Paris' MTA overtime assignments, deployment records, overtime reports, daily sign-in sheets, key-card access records, computer access logs, and similar documents.

Unlike Categories 1 and 2, these requests do not necessarily seek peace officer personnel records governed by the Pitchess statutory scheme. Rather, they primarily seek operational or business records maintained by the Department concerning work assignments, attendance, and facility access. Although such records may implicate privacy

interests, the mere existence of privacy concerns does not transform otherwise non-personnel records into Pitchess materials within the meaning of Penal Code section 832.8.

Accordingly, the Court declines to order an in camera review of Category 3 records pursuant to Evidence Code section 1043 through 1045. This ruling is without prejudice to Plaintiff seeking such materials, to the extent otherwise discoverable, through the ordinary provisions of the Civil Discovery Act, where appropriate objections based upon relevance, burden, confidentiality, and privacy may be addressed through the normal discovery process.

Privacy

Defendant further argues that disclosure would improperly invade the privacy rights of third-party officers. The Pitchess statutory scheme itself balances an officer's legitimate privacy interests against a litigant's need for relevant discovery. Once good cause has been established, the custodian of records must produce potentially responsive personnel records for the Court's confidential in camera review. The Court then determines which information, if any, is relevant and should be disclosed, subject to the limitations set forth in Evidence Code section 1045. This statutory procedure adequately protects legitimate privacy interests while preserving Plaintiff's right to obtain information necessary for a fair adjudication of his claims.

To the extent disclosure is ultimately ordered following the Court's in camera review, the Court will determine what limitations, if any, are appropriate to protect confidential information.

d. Conclusion

Plaintiff's Pitchess motion is GRANTED IN PART and DENIED IN PART.

Plaintiff

has established good cause for an in camera review of the materials requested in Categories 1 and 2.

Within

fifteen (15) calendar days, Defendant shall cause the custodian of records to lodge with the Court all potentially responsive personnel records relating to Categories 1 and 2 for in camera review pursuant to Evidence Code sections 1043 through 1045. No electronic filing shall be made.

The

motion is DENIED, without prejudice, as to Categories 3(a) and 3(b) because the requested records are not shown to constitute peace officer personnel records subject to the Pitchess statutory procedure.

Upon

completion of the in camera review, the Court will determine what information, if any, shall be disclosed pursuant to Evidence Code section 1045.

As required by CCP §1045(e) and

Alford v. Superior Court (2003) 29 Cal.4th 1033, 1039-1040, the disclosed information may not be used for any purpose other than a court proceeding pursuant to applicable law.

Pursuant to City of Alhambra v.

Superior Court (1988) 205 Cal.App.3d 1118, 1131, the Court will order a compliance date sufficient to allow the County to seek a writ of mandate if it wishes to do so. The Court will discuss a compliance date with the parties at the time of the hearing.

Parties who intend to submit on

this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.